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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2154/21 – 2019 දෙසැම්බර් මස 19 වැනි බ්‍රහස්පතින්දා – 2019.12.19
No. 2154/21 – THURSDAY, DECEMBER 19, 2019

(Published by Authority)

PART IV (A) – PROVINCIAL COUNCILS

Provincial Councils Notifications

SOUTHERN PROVINCE PROVINCIAL COUNCIL

**ORDERS UNDER THE IRRIGATION STATUTES No. 01 OF 2019 UNDER
THE SOUTHERN PROVINCIAL COUNCIL**

I, Udalamaththa Gamage Dayawansha Ariyathilaka, Minister of Agriculture, Agrarian Development, Irrigation, Water Supplying and Drainage, Food Supplying and Distribution and Trade and Cooperative Development of Southern Provincial Council hereby impose the following orders in terms of the Section 33 under the Irrigation Statutes No. 01 of 2019 under the Southern Provincial Council. These orders shall be effective on the day published in the *Gazette*.

UDALAMATHTHA GAMAGE DAYAWANSHA ARIYATHILAKA,
Minister of Agriculture, Agrarian Development,
Irrigation, Water Supplying and Drainage, Food Supplying
and Distribution and Trade and Cooperative Development of
Southern Provincial Council.

4th Floor, Dakshinapaya, Labuduwa, Galle,
At the Minister's Office,
Ministry of Agriculture, Southern Province.
09th of April 2019.



Directives on the Southern Province Irrigation Precept**01. Reserve Boundaries**

Stream/River bottom width (Meters)	Towards the reserve area from the bank; Stream/River	
	for open stream (Meters)	for covered stream (Meters)
$< b < 1.2$	3.0	0.6
$1.2 \leq b < 3.0$	3.0	1.2
$3.0 < b < 4.5$	3.5	
$4.5 < b < 6.0$	4.0	
$6.0 < b < 9.0$	4.5	
$b \geq 9.0$	6.5	

In the event where the above limits falls short of limits specified by, either the Urban Development Authority, Irrigation Department, Central Environment Authority, Agrarian Service Department, Department of Forest reserve, Wild Life Department, Coast Conservation Department, Low Lying Areas Reclamation Board, Land Reform Commission, Fisheries Department, Department of Archeology or any other Government or Provincial Council institution that have specified reserve limits for streams and waterways, the limits specified by those institutions will prevail.

Conditions and orders:-

- Unless there is recommendation in writing from the Director of irrigation of the Southern Province Irrigation Department, no construction of buildings, structural work or reclamation work should take place within the stream reservation, declared as a reservation area.
- The minimum area of reservation relevant as per the attached list, should be maintained in the field.
- It is necessary obtain the permission of the Provincial Director of Irrigation to build a boundary wall or a fence within the reservation, and such approval for a particular place would be granted subject to signing a 'no - compensation' agreement. In this, the approval will be granted based on the observations made by the District irrigation Engineers on the field reports (A specimen of the 'no-compensation' agreement is attached as attachment 1).

Reservation areas for Reservoirs and Lagoons:-

The reservation area of a reservoir or lagoon, is generally determined as the wetting area of purview covered by a point 0.5 meters high on the perpendicular line of High Flood Level-HFL. This area however, should not exceed a length of 6.5 meters from the reservoir / lagoon bund. Despite that position however, any construction taking place beyond the said area could be subject to the following conditions.

- Since the water table in the area, in proximity to a reservoir or lagoon, is at a higher (upper) level, a proposal for the disposal of wastewater resulting from any commercial construction or operation should have been submitted to the Central Environmental Authority and approval obtained prior to such construction. Under no circumstance should such wastewater be permitted to enter, directly or indirectly, into the reservoir or lagoon.

- (ii) In lands that are developed for sale in the areas in proximity to reservoirs or lagoons, drains and silt traps should be arranged to prevent rainwater from flowing into the reservoir or lagoon in keeping with the recommendations of the Director of irrigation. Since such lands could be expected to undergo ground preparation for about an year, to control situations of the flow of muddy water in to the reservoir during the rainy seasons, either a legally valid agreement should be entered in to with the Local Government authorities or a deposit of money could be made with the Provincial Irrigation department, as a means of controlling or compensating such eventuality.
- (iii) When developing lands in the proximity of reservation areas relating to streams, reservoirs and lagoons, prior recommendations for such developments should be obtained from the Provincial Director of Irrigation.

Special Note:-

In a situation where there are issues connected to the demarcations of a particular reservation area, action should be taken in keeping with the recommendations obtained from, either the Provincial Director of irrigation or from an investigation carried out by a committee appointed by him.

- 02. The declarations of streams, reservoirs, waterways and other aquifers owned by the Southern province Irrigation Department.

As per attachment No. 02, 03, 04 or 05.

- 03. Services supplied at a fee.

- (i) The fees charged for obtaining water from available sources of water for activities that are not commercial; Cents 05 for 1 liter of water.
- (ii) The fee for issuing the Boundary certificate after inspecting the irrigation reserve; Rs. Five Hundred.
(This fee will be subject revision from time to time)
- (iii) The fee for removing dredges with the approval of the Provincial Director of irrigation, subject to an agreement; Rs. One Hundred per cube.
The expense for excavating and for obtaining permits should be borne.

- 04. Other tasks for which permission should be obtained.

- (i) For erecting bridges, anicuts or other structural constructions across rivers, stream, reservoirs and lagoons.
- (ii) For, erecting prawn farm cages, constructing amenities required for the coir industry, maintaining boat hangers, erecting jetties or erecting other such constructions that obstruct the flow of water.
- (iii) For generating power.
- (iv) For obtaining water from the water sources through the deployment of motors (for commercial or non-commercial purposes).

Agreement

Prior Registration

No.....

This agreement, entered into between of as the first party, and Southern Province Director of Irrigation, as empowered by article 30 subsection (1) of the Southern Province Irrigation Precept, as the second party, on Day of the month of in the year signed in Galle, shall be known as declared below.

The first party has title to the property described in the schedule below of deed no, certified on by Attorney at Law and Notary Public and he is the legitimate owner of that property. In furtherance, the first party has made an application, no to the second party, to obtain a recommendation to put up, a Border wall / an Entrance gate / other construction, at the pace called described in the schedule below, within the irrigation reserve.

Accordingly, the first party so named, shall herewith agree to, dismantle and withdraw clear the Border wall / an Entrance gate / other construction or part thereof, with no claim of damages or compensation what so ever, at the first party's own expense, from in the section that falls within the Irrigation reserve from the bank of the rivulet, in the event that such dismantling is required for the purpose of, either broadening the rivulet or for whatever other requirement of the Southern Provincial Council.

Therefore, the first party herewith agree to abide by the existing laws, or laws that would be enacted in the future, with regard to broadening rivulets, border walls, entrance gates, other constructions or on reserve limits.

01. The first party shall herewith agree to, dismantle and withdraw clear the Border wall / an Entrance gate / other construction or part thereof, that the first party intends to put up at, with no claim of damages or compensation what so ever, at the first party's own expense.
02. In the event where the first party fails to dismantle and withdraw clear the Border wall / an Entrance gate / other construction, within 7 days of receiving notice to dismantle from the second party, the second party shall be herewith empowered to dismantle and clear such Border wall / an Entrance gate / other construction.
03. In a situation where the second party is called upon to act as stated in 02. above, the first party is herewith bound to reimburse all items of expenditure incurred by the second party in that respect. However, in the event where the first party disregards to pay such expense to the second party, the first party herewith acknowledges the right of the second party to recover the expenses incurred in dismantling and clearing such border wall, entrance gate or other structure that has been done in violation of the regulations as per article 31 of the Southern Province Irrigation Precept No. 1 of 2019.
04. The first party and the second party herewith agree that, the executors, administrators and the inheritors of the first party and the second party and his representatives, are bound to execute the provisions of this agreement.

We, as the first party, and, the Director of Irrigation of the Southern Provincial Council, as the second party, herewith signed in witness of this agreement and also in witness of the related 2 documents carrying the surname and the date, on day of the month of, in the year in Galle.

The Schedule mentioned above**Witnesses:**

As witness of this, we certify that the parties of signatories of this agreement are known to us well and that we are familiar with their names, places of work, places of residence and that they signed these documents in our presence.

1. First witness

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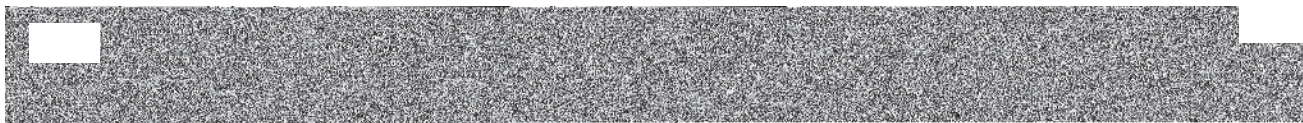
2. 2nd witness

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01.

02.

Attorney and Public Notary



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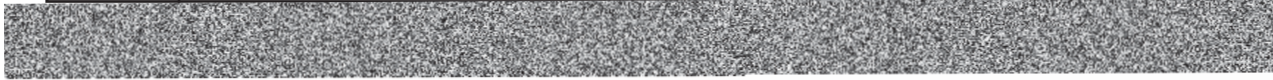


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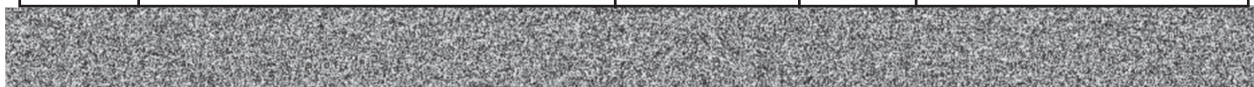
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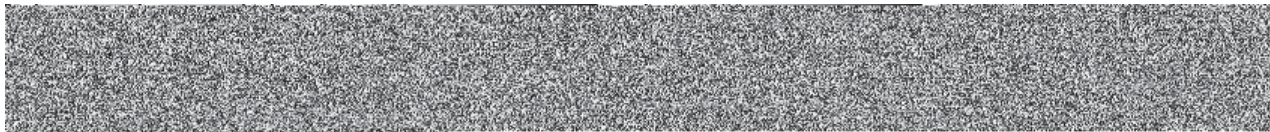


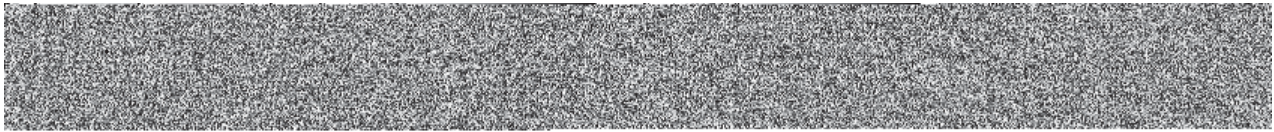












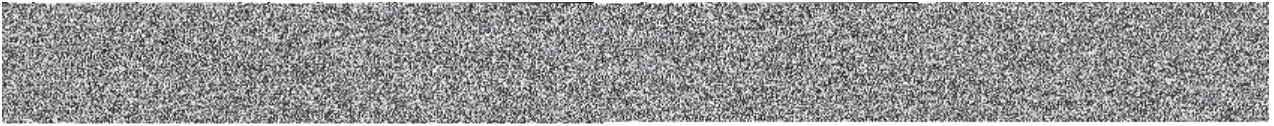






















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IV (අ) කොටස - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2019.12.19

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K

Kumbura Dakva Anicut

B
W

62A

IV (අ) කොටස - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2019.12.19

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B



